CGHC010228622024 2026:CGHC:29891-DB

NAFR

BABLU RAJENDRA BHANARKAR Digitally signed by BABLU RAJENDRA BHANARKAR Date: 2026.07.15 18:04:57 +0530

HIGH COURT OF CHHATTISGARH AT BILASPUR

CRA No. 1311 of 2024

Yogesh Tandan S/o Late Itwari Ram Tandan Aged About 35 Years R/o Village Shipkona P.S. Patan District Durg (C.G.)

... Appellant

versus

State Of Chhattisgarh Through Station House Officer, P.S. Patan District Durg (C.G.)

... Respondent

For Appellant	:	Mr.B.K.Chakrabarty, Advocate
For Respondent	:	Mr.Priyank Rathi, Government Advocate

Hon'ble Shri Ramesh Sinha, Chief Justice
Hon'ble Shri Ravindera Kumar Agrawal, Judge

Judgment on Board

***Per* Ramesh Sinha, Chief Justice**

15/07/2026

1. This criminal appeal under Section 374(2) of the CrPC is directed against the impugned judgment of conviction and order of sentence dated 10.04.2024 passed by the Additional Sessions Judge, Durg in Sessions Case No.200/2022, by which the appellant herein has been convicted for offence under Section 302 of the IPC and sentenced to undergo imprisonment for life

and fine of Rs.500/-, in default of payment of fine, to further undergo RI for six months.

2. Case of the prosecution, in brief, is that the complainant, Rajesh Kumar Tandon (PW-1), informed the Station House Officer, Shivanand Tiwari (PW-15), over the telephone on 27.07.2022 that Yogesh Tandon had assaulted his daughter, Lavanya Tandon @ Mini, as a result of which she had died. Upon receiving the information, Shri Shivanand Tiwari (PW-15) reached the spot and, upon verification, found Kumari Lavanya Tandon lying dead. Thereafter, the complainant Rajesh Kumar Tandon lodged a Marg Intimation (Ex. P-18). During the marg inquiry, a spot inspection panchnama (Ex. P-6) was prepared and a site map (Ex. P-2) of the place of occurrence was drawn. Notices (Ex. P-4) were issued to the witnesses for conducting the inquest proceedings, and the inquest panchnama (Ex. P-16) was prepared. The dead body of Kumari Lavanya was sent for postmortem examination along with the requisition for postmortem (Ex.P-24). Dr. Umesh Kumar Mirjha (PW-3) conducted the postmortem over the body of deceased Lavanya vide Ex.P-8 and found following symptoms:-

> “Rigor mortis present, Both eye are closed, Mouth is slightly open and protrusion of tongue with salivation. On perinary inspection there is no external injury except neck of body, neck is pale, nea scm us mild cynosed with finger marks present on neck.
>
> Faces on cloth. After exposion to internal organ and neck in pericardial cavity wild fluid is present. Bath

> chamber of heart is filled with blood, trachea is filled with fluid may be due to regurgitation. Broken hyoid ups and clothing inside neck is seen. Both sole and palm are pale."

The doctor has opined that the cause of death was cardio-pulmonary arrest due to asphyxia, and asphyxia is due to throttling.

3. On the basis of the postmortem report, the spot inspection, and the statements of the witnesses recorded during the marg inquiry, Crime No. 139/2022 was registered against the accused, Yogesh Tandon, for offence punishable under Section 302 of the Indian Penal Code, vide First Information Report (Ex. P-25). During the course of investigation, the memorandum statement of the accused (Ex. P-14) was recorded. The accused was arrested and the arrest memo (Ex. P-19) was prepared. Intimation regarding his arrest was given to his relative, Ramnarayan Sahu, through Ex. P-26.

4. The Investigating Officer addressed a letter (Ex. P-10) to the Tahsildar, Patan, requesting preparation of the site plan by the Patwari. Pursuant thereto, Ishwar Singh Thakur, Patwari (PW-4), prepared the Nazri Naksha (spot map) (Ex. P-3). During the course of investigation, an application (Ex. P-27) was submitted before the Judicial Magistrate First Class, Durg, seeking recording of the statement of Kumari Vedika Tandon under Section 164 of the Code of Criminal Procedure in connection with Crime No.

139/2022 registered at Police Station Patan. Accordingly, the learned Judicial Magistrate First Class recorded her statement (Ex. P-12). The statements of the other prosecution witnesses were also recorded during the investigation. Upon completion of the investigation, it was found that on 27.07.2022, the accused Yogesh Tandon had assaulted his daughter. At that time, Rajesh Tandon (PW-11) brought another child, Hanshika, into his room. Hanshika told him that "Papa is beating her," after which Rajesh made her lie down and sleep. About fifteen minutes later, his brother Yogesh Tandon came into Rajesh's room crying and stated that "Meenu has died." Rajesh responded by saying that if he had done such an act, it would have serious consequences. Rajesh then went to the room and found that his niece, Lavanya, was lying on the floor with her tongue protruding from her mouth. Human excreta was found on the floor as well as on her undergarment. Thereafter, he came out crying and called the neighbour, Dr. Kamlesh (PW-5), who informed him that Lavanya had already died. Vedika Tandon (PW-6) also stated that the accused, Yogesh Tandon, had strangulated Lavanya and thereby caused her death.

5. Upon completion of the entire investigation, it was found that sufficient evidence existed to establish that the accused had committed the offence punishable under Section 302 of the Indian Penal Code.

6. After completion of investigation, charge-sheet was filed before the Judicial Magistrate First Class, Patan who in turn, committed the case to the Court of Sessions, Durg, from where the Additional Sessions Judge, Durg received the case on transfer for trial. The accused/appellant abjured the guilt and entered into defence.

7. In order to bring home the offence, the prosecution examined as many as 15 witnesses and exhibited 27 documents Exs.P-1 to P-27. Statement of the accused/appellant was recorded under Section 313 of the CrPC in which he denied guilt. However, the appellant-accused examined none in his defence nor any document has been exhibited.

8. The trial Court upon appreciation of oral and documentary evidence available on record, by its judgment dated 10.04.2024, convicted the appellant for offence under Section 302 of the IPC and sentenced as mentioned in opening paragraph of this judgment, against which, this criminal appeal has been preferred by the appellant herein.

9. Learned counsel for the appellant submits that the appellant is innocent and he has been falsely implicated in crime in question. He further submits that learned trial Court grossly erred in convicting the appellant particularly when the prosecution has failed to prove the case beyond reasonable doubt. The prosecution can not take the advantage of Section 106 of the Indian Evidence Act unless the motive to kill daughter is

established and proved. He also submits that there are material contradictions and omissions in the statements of the prosecution witnesses. Hence, the criminal appeal deserves to be allowed and the judgment impugned deserves to be set aside.

10. On the other hand, learned Government Advocate appearing for the respondent/State supports the impugned judgment and submits that dead body of deceased Lavanya was found lying in the house of the appellant, therefore, provision of Section 106 of the Evidence Act is applicable and the appellant was required to explain as to under what circumstances Lavanya died in his house. He further submits that appellant has failed to explain the death of the deceased and therefore, conviction of the appellant for offence under Section 302 of the IPC is well merited and the appeal deserves to be dismissed.

11. We have heard learned counsel appearing for the parties, considered their rival submissions made herein-above and also went through the records with utmost circumspection.

12. The question for consideration is whether the appellant is the author of the crime, which the trial Court has answered in affirmative relying upon the circumstantial evidence available on record. The trial Court has convicted the appellant with the aid of Section 106 of the Evidence Act holding that it is house murder, which the appellant was required to offer explanation in his statement under Section 313 of the CrPC, which he has failed to

offer and consequently, finding other circumstance established, proceeded to convict him for offence under Section 302 of the IPC.

13. Section 106 of the Indian Evidence Act, 1872, states as under: -

> "**106. Burden of proving fact especially within knowledge.**—When any fact is especially within the knowledge of any person, the burden of proving that fact is upon him."

14. The law regarding under Section 106 of the Indian Evidence Act, 1872 is well settled. The unnatural death of Lavanya took place in the house of the appellant.

15. As per the requirement of Section 106 of the Indian Evidence Act, the accused was required to give plausible and convincing explanation about the circumstances, in which, the deceased was found dead in their house. Where an offence like murder is committed inside the house, the initial burden to establish the case would undoubtedly be upon the prosecution, but the nature and amount of evidence to be led by it to establish the charge cannot be of the same degree as is required in other cases. The burden would be of a comparatively lighter character.

16. In view of Section 106 of the Indian Evidence Act, 1872, there will be a corresponding burden on the inmates of the house to give a cogent explanation as to how crime was committed. The inmates of the house cannot keep away by simply keeping quite and offering no explanation on the supposed premise that the burden

to establish its case lies entirely upon the prosecution and there is no duty at all on the accused to offer any explanation.

17. In the matter of **Trimukh Maroti Kirkan v. State of Maharashtra** reported in **(2006) 10 SCC 681** the Supreme Court whilst applying provisions of Section 106 of the Indian Evidence Act, observed in para 14 reads as under:

> "14. If an offence takes place inside the privacy of a house and in such circumstances where the assailants have all the opportunity to plan and commit the offence at the time and in circumstances of their choice, it will be extremely difficult for the prosecution to lead evidence to establish the guilt of the accused if the strict principle of circumstantial evidence, as noticed above, is insisted upon by the Courts. A Judge does not preside over a criminal trial merely to see that no innocent man is punished. A Judge also presides to see that a guilty man does not escape. Both are public duties. The law does not enjoin a duty on the prosecution to lead evidence of such character which is almost impossible to be led or at any rate extremely difficult to be led. The duty on the prosecution is to lead such evidence which it is capable of leading, having regard to the facts and circumstances of the case. Here it is necessary to keep in mind Section 106 of the Evidence Act which says that when any fact is especially within the knowledge of any person, the burden of proving that fact is upon him. Illustration (b) appended to this section throws some light on the content and scope of this provision and it reads:
>
> > (b) A is charged with traveling on a railway without ticket. The burden of proving that he had a ticket is on him."

18. On the interpretation of Section 106 of the Indian Evidence Act, 1872 in the matter of **Shambhu Nath Mehra v. State of Ajmer** reported in **AIR 1956 SC 404** in paragraph 9 it was observed by the Supreme Court thus:

> "9. This lays down the general rule that in a criminal case the burden of proof is on the prosecution and Section 106 is certainly not intended to relieve it of that duty. On the contrary, it is designed to meet certain exceptional cases in which it would be impossible, or at any rate disproportionately difficult, for the prosecution to establish facts which are "especially" within the knowledge of the accused and which he could prove without difficulty or inconvenience. The word "especially" stresses that. It means facts that are pre-eminently or exceptionally within his knowledge. If the section were to be interpreted otherwise, it would lead to the very startling conclusion that in a murder case the burden lies on the accused to prove that he did not commit the murder because who could know better than he whether he did or did not."

19. In the matter of **State of West Bengal v. Mir Mohammad Omar and others** reported in **(2000) 8 SCC 382**, the Supreme Court Court has observed in paras 31 to 33 as under:

> “31. The prestine rule that the burden of proof is on the prosecution to prove the guilt of the accused should not be taken as a fossilised doctrine as though it admits no process of intelligent reasoning. The doctrine of presumption is not alien to the above rule nor would it impair the temper of the rule. On the other hand, if the traditional rule relating to burden of proof of the prosecution is allowed to be wrapped in pedantic coverage the offenders in serious offences would be the major beneficiaries, and the society would be the casualty.
>
> 32. In this case, when the prosecution succeeded in establishing the afore narrated circumstances, the Court has to presume the existence of certain facts. Presumption is a course recognized by the law for the court to rely on in conditions such as this.
>
> 33. Presumption of fact is an inference as to the existence of one fact from the existence of some other facts, unless the truth of such inference is disproved. Presumption of fact is a rule in law of evidence that a

> fact otherwise doubtful may be inferred from certain other proved facts. When inferring the existence of a fact from other set of proved facts, the Court exercises a process of reasoning and reach a logical conclusion as the most probable position. The above principle has gained legislative recognition in India when Section 114 is incorporated in the Evidence Act. It empowers the Court to presume the existence of any fact which it thinks likely to have happened. In that process Court shall have regard to the common course of natural events, human conduct etc. in relation to the facts of the case."

20. The decision of the Supreme Court in **Shambhu Nath Mehra** (supra) was followed with approval in the matter of **Nagendra Sah v. State of Bihar** reported in **(2021) 10 SCC 725** in which it has been held by their Lordships of the Supreme Court as under:

> "22. Thus, Section 106 of the Evidence Act will apply to those cases where the prosecution has succeeded in establishing the facts from which a reasonable inference can be drawn regarding the existence of certain other facts which are within the special knowledge of the accused. When the accused fails to offer proper explanation about the existence of said other facts, the court can always draw an appropriate inference.
>
> 23. When a case is resting on circumstantial evidence, if the accused fails to offer a reasonable explanation in discharge of burden placed on him by virtue of Section 106 of the Evidence Act, such a failure may provide an additional link to the chain of circumstances. In a case governed by circumstantial evidence, if the chain of circumstances which is required to be established by the prosecution is not established, the failure of the accused to discharge the burden under Section 106 of the Evidence Act is not relevant at all. When the chain is not complete, falsity of the defence is no ground to convict the accused."

21. Ahilya Bai (PW-1), the mother of the accused/appellant, deposed that the accused/appellant was in the room with the children on

the night of the incident and that it was the accused himself who informed the family that Lavanya had died.

22. Saraswati Tandon (PW-2), wife of the accused/appellant, established the prosecution's case regarding motive. She deposed that the accused/appellant suspected her character, doubted the paternity of their children, threatened to kill the children, and forcibly kept them with him following a physical altercation on the day of the incident.

23. Dr. Umesh Kumar Mirjha (PW-3) conducted the postmortem examination (Exs. P-8 and P-9) and opined that the deceased had died a homicidal death due to asphyxia caused by strangulation. He further confirmed that hyoid bone of the deceased was fractured and that finger marks were present on her neck.

24. Vedika Tandon (PW-6), nine-year-old daughter of the accused/appellant and a child witness, testified that she was present in the room with the accused/appellant and the deceased on the night of the incident. Her testimony established that the accused/appellant was alone with the deceased immediately prior to her death.

25. Kiran Tandon (PW-7), sister of the accused/appellant, deposed that her mother, Ahilya Bai (PW-1), was crying and shouting that her son, Yogesh, had killed his granddaughter.

26. Rajesh Kumar Tandon (PW-11), brother of the accused/appellant, deposed that the accused/appellant was sleeping in the adjoining

room with the children and that it was the accused/appellant who informed him late in the night that the child had died.

27. It is to be remembered here that homicidal nature of death need not always be proved through direct evidence. It has to be inferred from the circumstances and the nature of injuries noticed on the dead body. The instant case is about the death of a wife committed by the husband within four walls of the house. When the assailant is the husband, it is difficult indeed to get direct evidence on the nature of injuries. It is thus concluded that the deceased died homicidal nature of death. Considering the postmortem report made by Dr.Umesh Kumar Mirjha (PW-3) vide Ex.P-8 and further considering the nature of injuries, which the deceased was found, we are of the considered opinion that death of the deceased was homicidal in nature. It is held accordingly.

28. In the present case, the deceased was found dead in her house and at that time, only the appellant and the deceased were present in the house and as per the provision of Section 106 of the Evidence Act, the burden to prove that the appellant was not present in the house at the time of incident and he was present elsewhere is on the appellant, which he admittedly failed to prove in his statement under Section 313 of the CrPC.

29. Considering the postmortem report made by Dr.Umesh Kumar Mirjha (PW-3) vide Ex.P-8, taking into consideration that the burden of proving a plea specially set up by the appellant which

may absolve him from criminal liability, certainly lies upon him and he has not offered any plausible explanation, further taking into consideration that the appellant was required to explain as to how the deceased died, as the dead body of the deceased was found lying inside the house of the appellant, which he has admittedly not explained in his statement under Section 313 of the CrPC and the material collected by the prosecution, we are of the considered opinion that the above chain of circumstances is complete and leads only to one conclusion that it was the accused/appellant who caused death of the deceased. The view taken by learned trial Court that the appellant is the author of the crime is a pure finding of fact based on evidence available on record. We hereby affirm that finding.

30. Upon a careful consideration of the entire evidence available on record, this Court is of the considered opinion that the prosecution has succeeded in proving the guilt of the appellant beyond reasonable doubt. The chain of circumstantial evidence is complete and unerringly points towards the guilt of the appellant, excluding every hypothesis consistent with his innocence. The prosecution has established that the deceased died a homicidal death due to strangulation inside the house where the appellant alone was present with the deceased. The medical evidence, the testimonies of the prosecution witnesses, the motive established by the prosecution, and the appellant's failure to furnish any plausible explanation regarding the circumstances in which the

deceased met with her homicidal death within the special knowledge of the appellant, as required under Section 106 of the Indian Evidence Act, constitute a complete chain of circumstances leading only to the conclusion that it was the appellant who committed the murder of the deceased.

31. The learned trial Court has meticulously appreciated the oral as well as documentary evidence on record and has correctly applied the principles governing cases based on circumstantial evidence as well as the scope and applicability of Section 106 of the Indian Evidence Act. This Court finds no perversity, illegality or infirmity in the findings recorded by the learned trial Court warranting interference in the exercise of appellate jurisdiction. The submissions advanced on behalf of the appellant do not create any dent in the prosecution case nor do they render the findings of the trial Court unsustainable.

32. In the result, this Court comes to the conclusion that the prosecution has succeeded in proving its case beyond all reasonable doubts against the appellant. The conviction and sentence as awarded by the trial Court to the appellant is hereby upheld. The present criminal appeal lacks merit and is accordingly **dismissed**.

33. It is stated at the Bar that the appellant is in jail. He shall serve out the sentence as ordered by the trial Court.

34. The Registry is directed to transmit the certified copy of this judgment along with the record to the trial Court concerned for necessary information and compliance and also send to the concerned Superintendent of Jail where the appellant is undergoing his jail term, to serve the same on the appellant informing him that he is at liberty to assail the present judgment passed by this Court by preferring an appeal before the Hon'ble Supreme Court with the assistance of the High Court Legal Services Committee or the Supreme Court Legal Services Committee.

Sd/-

(**Ravindra Kumar Agrawal**)
Judge

Sd/-

(Ramesh Sinha)
Chief Justice

Bablu